

Interpretation

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Application

1.1

This Part applies to every person to whom any rule in the PRA Rulebook applies.

1. (1) [deleted]

2. (2) [deleted]

3. (3) [deleted]

4. (4) [deleted]

5. (5) [deleted]

6. (6) [deleted]

7. (7) [deleted]

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Interpretative Provisions

Purposive interpretation

2.1

Every provision in the _PRA_ Rulebook must be interpreted in the light of its purpose.

Use of defined expressions

2.2

In the PRA Rulebook, save as otherwise indicated in a Part of the _PRA_ Rulebook, an expression in italics defined:

1. (1) in the _PRA_ Rulebook Glossary has the meaning given in that glossary;

2. (2) for the purposes of _FSMA_ has the meaning given in that Act;

3. (3) in the Interpretation Act 1978 has the meaning given in that Act.

2.2A

In the _PRA_ Rulebook, an expression in italics that has no meaning given for the purposes of any of the following: the Part in which that expression appears, the _PRA_ Rulebook Glossary, _FSMA_ or the Interpretation Act 1978, but that was defined in the _PRA Handbook_ as at 6 March 2016 has that meaning.

Application of the Interpretation Act 1978

2.3

Save as otherwise indicated, the Interpretation Act 1978 applies to the _PRA_ Rulebook.

Cross-references in the PRA Rulebook

2.4

A reference in the _PRA_ Rulebook to another provision in the _PRA_ Rulebook is a reference to that provision as amended from time to time.

Activities covered by rules

2.5

In the _PRA_ Rulebook, a rule made by the _PRA_ under section 137G of _FSMA_ applies to a _firm_ with respect to the carrying on of any activities, except to the extent that a contrary intention appears.

Continuity of authorised partnerships and unincorporated associations

2.6

If a _firm_ is dissolved, but its authorisation continues to have effect under section 32 (Partnerships and unincorporated associations) of _FSMA_ in relation to any partnership or unincorporated association that succeeds to the business of the dissolved _firm_, the successor partnership or unincorporated association is to be regarded as the same _firm_ for the purposes of the _PRA_ Rulebook unless the context otherwise requires.

2.7

Unless the context otherwise requires, any reference in these rules to:

1. (1) any provision of _direct EU legislation_, is a reference to it as it has effect as _retained direct EU legislation_;
2. (2) an _EU directive_ is a reference to the directive as it had effect in EU law immediately before _IP completion day_;
3. (3) the implementation or transposition of provisions of an _EU directive_, is a reference to the provisions of _EU-derived domestic legislation_ which were relied on before __IP completion day__ for that implementation or transposition;
4. (4) an enactment which has been amended on or before __IP completion day__ by regulations made under section 8 of the European Union (Withdrawal) Act 2018, is a reference to that enactment as so amended.

2.8

1. (1) The PRA Rulebook shall, after _IP completion day_, be construed, unless the contrary intention appears, as conferring rights and imposing obligations in relation to or in connection with Gibraltar corresponding to those which existed immediately before _IP completion day_.
2. (2) Accordingly, any provision of the PRA Rulebook which immediately before _IP completion day_ applied in relation to or in connection with Gibraltar shall, with any necessary modification to give effect to that corresponding right or obligation, continue to apply after _IP completion day_; and any provision which did not so apply shall continue not to apply, unless provision indicating a contrary intention is made.
3. (3) In this rule reference to Gibraltar includes, but is not limited to, rights or obligations conferred or imposed in relation to or in connection with Gibraltar-based firms, public institutions established, persons resident, body corporates incorporated in Gibraltar and activities of UK firms in Gibraltar.
4. (4) This rule does not apply to the Depositor Protection and Policyholder Protection Parts (which contain their own application provisions for Gibraltar-based firms).

5. (5) In this rule "a Gibraltar-based firm" has the same meaning as in the Financial Services and Markets Act (Gibraltar) Order 2001.

2.9

1. (1) Unless the contrary intention appears any reference in these rules to any provision of:

1. (a) "CRR" or an instrument made under "CRR" which took effect as "direct EU legislation" on "IP completion day" shall:

1. (i) where that provision has been revoked pursuant to section 3 of the Financial Services Act 2021 or section 1 of the Financial Services and Markets Act 2023, be a reference to the corresponding provision in the rules, and for this purpose whether a rule corresponds to a revoked provision is to be determined by reference to the document, as that document is updated from time to time, published by the "PRA" under section 5(4) of the Financial Services Act 2021; and

2. (ii) where that provision has not been so revoked, be a reference, subject to paragraph (2) below, to that provision as it had effect as "direct EU legislation" on "IP completion day".

2. (b) Regulation (EU) No 575/2013 on prudential requirements for credit institutions and investment firms, shall, where that provision did not take effect as "direct EU legislation" on "IP completion day", but has been transposed, with or without modification, into "CRR rules", be a reference to that transposed provision in the rules.

2. (2) Unless the contrary intention appears any reference in "CRR rules" or rules made under section 192XA "FSMA" to a provision of "CRR" or an instrument made under "CRR" is a reference to that provision as amended from time to time.

2.10

1. (1) Subject to paragraph (3), "CRR restatement provisions" shall apply as their corresponding provisions would have applied in accordance with the direction made by the Prudential Regulation Authority on 28 December 2020 under Part 7 of the Financial Services and Markets Act 2000 (Amendment) (EU Exit) Regulations 2019 (including any limitation on the duration of the direction).

2. (2) In this rule the reference to:

1. (a) a "CRR restatement provision" is a reference to a "CRR restatement provision" within the meaning of section 144E (2) of "FSMA";

2. (b) a corresponding provision means the provision revoked under section 3(1) of the Financial Services Act 2021 which corresponds to the provision of the "CRR restatement provision" as determined by reference to the document published under section 5(4) of that Act, as that document is updated from time to time.

3. (3) This rule shall not apply to "CRR restatement provisions" in the Liquidity (CRR) Part Part", the Liquidity Coverage Ratio (CRR) Part Part" and, insofar as the provision relates to the reporting or disclosure of liquidity, the Reporting (CRR) Part Part" or Disclosure (CRR) Part Part" of the "PRA" Rulebook.

2.11

Any reference in "CRR rules" or rules made under section 192XA "FSMA" to the granting of a waiver, approval, permission or other form of consent by the "competent authority" is a reference to the giving of a permission by the "PRA" pursuant to section 144G or section 192XC of "FSMA", exercisable in accordance with the conditions as set out in those rules for the exercise of that waiver, approval, permission or other form of consent.

* Future version of 2.11 after 01/01/2027

2.12

Nothing in the "CRR", or in an instrument made under the "CRR", shall prevent or otherwise restrict, expressly or impliedly, the making of:

1. (1) a _CRR rule_ to the extent it makes provision about a matter described in section 144A(3) _FSMA_ ; or
2. (2) a rule under section 192XA _FSMA_ ,

or the exercise of any other power by the _PRA_ in relation to any matter on which such a rule may be made, and the _CRR_ and the instrument shall be modified accordingly.

2.13

Unless the contrary intention appears, _CRR rules_ and rules made under section 192XA _FSMA_ shall be read as if they formed part of _CRR_ , and accordingly words and expressions used in those rules shall bear the meaning they have in _CRR_ (and not the meaning in the Glossary to the Rulebook).